

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nina Mickens	Team: Team # 2	CCRB Case #: 201003932	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 03/21/2010 3:39 AM	Location of Incident: § 87(2)(b)	Precinct: 123	18 Mo. SOL 9/21/2011	EO SOL 9/21/2011	
Date/Time CV Reported Sun, 03/21/2010 9:34 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/24/2010 1:30 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Ryan McGuinness	04856	938991	123 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Ryan McGuinness	Force: PO Ryan McGuinness used physical force against § 87(2)(b)	§ 87(2)(b)
B.POM Ryan McGuinness	Off. Language: PO Ryan McGuinness made remarks to § 87(2)(b) based upon ethnicity.	§ 87(2)(b)

Case Summary

On March 21, 2010, § 87(2)(b) contacted the Internal Affairs Bureau to file a complaint on behalf of her son, § 87(2)(b) (IAB Log # 10-14064). The complaint was received at the CCRB on March 24, 2010. § 87(2)(b) did not witness the incident. § 87(2)(b) stated that on March 21, 2010, at approximately 3:39a.m., § 87(2)(b) used fake identification to gain entry into a club. There was a fight inside the club involving one of § 87(2)(b)'s friends and he tried to break it up. When the police arrived at the location, PO Ryan McGuinness along with his partner grabbed § 87(2)(b). Then PO McGuinness kicked him in the stomach, chin and rib cage causing bruises and a cut to his elbow (Allegation A). Then he was dragged on the street to the police car which also caused scrapes on his knees. § 87(2)(b)'s wrists were swollen with black and blue bruises due to the fact that the handcuffs were too tight on him. PO McGuinness called § 87(2)(b) a "typical Staten Island Guinea", because he is Italian and the officer is Irish (Allegation B). § 87(2)(b) was arrested for possession of forgery instrument, resisting arrest, criminal mischief and criminal trespass.

An attempt was made to contact § 87(2)(b) and § 87(2)(b) via their home phone number on March 26, 2010. The phone number was disconnected. An attempt to contact § 87(2)(b) via her cell phone was made on the same date. A voicemail message was left. Four additional attempts were made to contact § 87(2)(b) via her cell phone between April 2, 2010 and April 8, 2010. Each time, a prompt indicated that the person was not able to receive calls and there was no option to leave a message. A search of Lexis Nexis provided an additional phone number for § 87(2)(b) and § 87(2)(b). When an attempt to contact the parties via telephone was made on April 2, 2010, a woman answered and stated that the phone number belonged to § 87(2)(b). She confirmed that § 87(2)(b) and § 87(2)(b) lived above the business but she did not know if they had a working telephone. Two letters were mailed to § 87(2)(b) and § 87(2)(b) on March 26, 2010 and April 2, 2010. The letters were not returned. A check of the Department of Corrections confirmed that § 87(2)(b) and § 87(2)(b) were not incarcerated. As of the date of this report, neither person has contacted the CCRB.

§ 87(2)(g)

Team: 2

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Investigator:	_____	<u>Nina S. Mickens</u>	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date